

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

5. DAWNDEREE HARRISON V. BLAKE HARRISON

25FL1121

Petitioner filed a Request for Order (RFO) on February 26, 2026, seeking spousal support, property control, and Family Code section 2030 attorney's fees. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served on March 4, 2026; however, the service was missing the Notice of Tentative Ruling as well as the Remote Appearance Request forms.

Respondent filed a Responsive Declaration, as well as Memorandum of Points and Authorities, Declaration of Luke Gary, and an Income and Expense Declaration on May 13, 2026. All were served on May 13, 2026.

Petitioner is seeking guideline spousal support, exclusive use and control of "La Jolla, CA", and attorney's fees in the amount of \$30,000. Respondent opposes the requests as there is currently a temporary Domestic Violence Restraining Order (DVRO) in place and parties are pending trial on the request for a more permanent DVRO. Respondent requests the matter be continued until after the DVRO trial.

The court finds good cause to continue the RFO to join with the currently pending trial, set to commence June 10, 2026, at 8:30 AM in Department 8. Additionally, the court notes there are current orders restricting Petitioner's access to the San Diego property in the temporary DVRO. The court reserves jurisdiction to retroactively award support to the date of the filing of the RFO. The court reserves on the request for Family Code section 2030 attorney's fees.

All prior orders not in conflict with these orders remain in full force and effect. Petition is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT FINDS GOOD CAUSE TO CONTINUE THE RFO TO JOIN WITH THE CURRENTLY PENDING TRIAL, SET TO COMMENCE JUNE 10, 2026, AT 8:30 AM IN DEPARTMENT 8. ADDITIONALLY, THE COURT NOTES THERE ARE CURRENT ORDERS RESTRICTING PETITIONER'S ACCESS TO THE SAN DIEGO PROPERTY IN THE TEMPORARY DVRO. THE COURT RESERVES JURISDICTION TO RETROACTIVELY AWARD SUPPORT TO THE DATE OF THE FILING OF THE RFO. THE COURT RESERVES ON THE REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES.

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ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. ASHLYN HIGAREDA V. ISACC HIGAREDA

25FL0250

Respondent filed a Request for Order (RFO), on February 26, 2026, seeking modification of the child custody and parenting plan orders as well as various other parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 30, 2026, and a review hearing on May 28, 2026. Proof of Service shows Petitioner was served by mail on February 26th.

Both parties appeared at the CCRC appointment on March 30, 2026. The parties were able to reach several agreements. A report with the parties' agreements as well as further recommendations was filed with the court on May 11, 2026. Copies were mailed to the parties on May 13, 2026.

Petitioner filed a responsive declaration on May 14, 2026. It was served the same day. Petitioner requests the visits be from 10:30 AM until 6:30 PM rather than what is proposed in the CCRC report. Further, Petitioner requests the step-up plan not commence until Respondent has returned from deployment or until it is confirmed he will not deploy. Last Petitioner requests that the visits do not occur until Respondent is no longer residing with his sister.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties to be in the best interest of the minor, with the following modification. Step 1: Respondent's parenting time shall be the 1st and 3rd Saturdays and Sundays from 10:00 AM until 6:30 PM. On the 2nd and 4th weeks of the month Respondent shall have parenting time mid-week on a day agreed to by the parties from 3:00 PM to 6:30 PM. If the parties are unable to agree to a day, Respondent's parenting time shall be on Wednesdays.

The court is adopting the recommendations with the following modifications. Step 2: After Respondent has had parenting time consistently, with no missed or shortened time for the 1st and 3rd weekends in June and July, Respondent shall progress to overnight parenting time. Respondent's parenting time shall continue to be the 1st and 3rd weekend of the month with parenting time from 10:00 AM Saturday to 10:00 AM Sunday. Respondent shall continue to have mid-week parenting time as set forth above.

Step 3: After Respondent has had parenting time consistently, with no missed or shortened parenting time, for overnight for the 1st and 3rd weekends in August and September, Respondent shall progress to weekend parenting time on the 1st and 3rd